NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

ORDER SHEET OF THE HEARING ON 25th JANUARY, 2024, 10:30 A.M.

CP (CAA)/11/GB/2022

Present: 1. Hon'ble Member (Judicial), Shri H.V. Subba Rao
2. Hon'ble Member (Technical), Shri Satya Ranjan Prasad

Name of the Company	Arrow Alloys Pvt. Ltd. & Other Nine Transferor Companies. And KCL Estates Pvt. Ltd. (Transferee Company)
Under Section	U/s 230 to 232 of Companies Act, 2013

For Petitioner (s) : Mr. Arani Guha, Adv.

For Respondent (s) :

ORDER

This matter was heard and reserved for orders on 05.10.2023. However, while preparing order it has come to notice that certain clarifications are essential from the Petitioner side in respect of the observations made by RD, NER. Therefore, matter was de-reserved. However, there was no appearance for the Petitioner side on the subsequent dates that is on 27.10.2023 and 04.12.2023.

Matter has been taken up today. In view of the observations of the Ld. RD that copy of the Petition filed before this Tribunal in first and Second motions have not been served on them. Therefore, they are not in a position to file a comprehensive representation. Also, the copy of report of the Registrar of Companies, Guwahati has not been received due to the same reason.

However, the Ld. Counsel for the Petitioner states that the petitions have already been served on RD and ROC. It is noted that the relevant Affidavit of Service has not been filed. In the stated scenario, petitioner side is directed to serve the copy of the petitions to RD, ROC and

Official Liquidator and file affidavit on service at least 3 days before the next date of hearing. On receipt of the copy of petition they shall have three weeks' time to file their comprehensive representation/report, if any.

List the matter for further consideration on 12.03.2024.

Sd/-
Satya Ranjan Prasad
Member (Technical)

Sd/-
H.V. Subba Rao
Member (Judicial)

Shubham